

The University of Rajputana (Second Amendment) Act, 1950

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State of Rajasthan - Act

The University of Rajputana (Second Amendment) Act, 1950

RAJASTHAN

India

The University of Rajputana (Second Amendment) Act, 1950

Act 13 of 1950

Published on 30 September 1950

Commenced on 30 September 1950

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The University of Rajputana (Second Amendment) Act, 1950

Rajasthan Act

13 of 1950

(Made by His Highness the Raj Pramukh on the 30th day of September, 1950).

[Published in Rajasthan Gazette, Extraordinary, Part IV-A, dated 30-9-1950, page 129-161.]

An Act further to amend the University of Rajputana Acts, 1946.

Whereas it is expedient further to amend the University of Rajputana Acts, 1946, of the Covenanted Statutes, for the purposes and in the manner hereinafter appearing; it is hereby enacted as follows:-

1.

Short title.

(1)

This Act may be called the University of Rajputana (Second Amendment) Act, 1950.

(2)

It shall come into force of the date of its publication in the Rajasthan Gazette.

2.

Amendment of section 2.

- In section 2 of the University of Rajputana Acts, 1964, of the Covenanted Stated, hereinafter referred to as said Acts-

(i)

for clauses (c) and (d), the following shall be substituted:-

"(c) "Status", "Ordinances", "Regulations" and "Rules" mean, respectively, the statutes, ordinances, regulations and rules of the University made under this Act;

(d)

"Teacher" means professors, readers, lectures, and such other persons engaged in the work of teaching in a department of the University or in any of its affiliated colleges, recognised schools or approved institutions."

(ii)

after clause (f) the following new clauses shall be inserted:-

"(g) "Approved" means approved by the University under the provisions of this Act;

(h)

"External student" means a student, not being an internal student, who prepares for an examination of the University under such conditions as may be prescribed;

(i)

"Government" means the Government of Rajasthan;

(j)

"Institution" means an institution for research or specialised studies or any other institution approved as such by the University under the provisions of this Act;

(k)

"Internal student" means a student who pursues a regular course of study at a college or school affiliated to or recognised by the University or at an institution approved by the University or in a department of the University;

(l)

"Recognised" means recognised by the University under the provisions of this Act."

3.

Amendment of section 4.

- In section 4 of the said Acts-

(i)

after clause (1) the following new clause shall be inserted:-

"(1A) to make such provisions as would enable affiliated colleges, recognised schools and approved institutions to undertake specialisation of studies and to organise common laboratories, libraries, museums and other equipment for teaching instruction, training and research,

(1B)

to establish, maintain and manage colleges, departments and institutes for research or specialised studies."

(ii)

for clause (4) the following clause shall be substituted:-

"(4) to confer degrees, diplomas and other academic distinctions on, and to provide teaching, instruction and training for, external students, in the manner prescribed by the statutes, ordinances and regulations."

(iii)

after clause (4) the following new clause shall be inserted:-

"(4A) to admit colleges, High Schools and institutions to the privileges of the University and to withdrawn such privileges."

(iv)

for clause (7) the following clause shall be substituted:-

"(7) to inspect affiliated colleges, recognised schools and approved institutions and to take measures to ensure that proper standards of teaching instruction and training are maintained in them."

4.

Amendment of section 8.

- For section 8 of the said Acts, the following section shall be substituted:-

"8. Teaching of the University. - (1) All teaching recognised by the University shall be conducted either in the University, or in-

(a)

affiliated colleges,

(b)

recognised schools, and

(c)

approved institutions.

(2)

The courses of study and curricula to be followed in the University or its affiliated colleges and recognised High Schools may be prescribed by the statutes and ordinances and, subject thereto, by regulations."

5.

Insertion of new sections 8A and 8B.

- After section 8 as to substituted, the following sections shall be inserted:-

"8A. Visitor. - (1) The President of the India shall be the Visitor of the University;

(2)

The Visitor shall have the right to cause an inspection, to be made by such person on persons as he may direct, of the University, its buildings, and laboratories and equipment and of any institutions, maintained by the University, and also of the examinations, teaching and other work conducted or done by the University and to cause an inquiry to be made in like manner in respect of any matter connected with the University. The Visitor shall in every case give notice to the University of his intention to cause an inspection or inquiry to be made, and the University shall be entitled to be represented thereat;

(3)

The Visitor may address the Vice Chancellor with reference to the result of such inspection and inquiry, and the Vice-Chancellor shall communicate to the Senate the view of the Visitor with such advice as the Visitor may be pleased to offer upon the action to be taken thereon;

(4)

The Senate shall communicate through the Vice-Chancellor to the Visitor such action, if any, as it is proposed to take or has been taken upon the result of such inspection or inquiry;

(5)

Where the Senate does not, within the reasonable time, take action to the satisfaction of the Visitor, the Visitor may after considering any explanation furnished or representation made by the Senate, issue such directions as he may think fit and the Senate shall comply with such directions.

8B.

Patron. - The Maharaj Pramukh of Rajasthan shall be the Patron of the University and shall, when present, preside at the convocations thereof."

6.

Amendment of section 9.

- In section 9 of the said Acts, item (ii) shall be omitted.

7.

Amendment of section 10.

- In section 10 of the said Acts-

(1)

for sub-sections (1) and (2) the following sub-sections shall be substituted:-

"10. Chancellor. - (1) The Raj Pramukh of Rajasthan shall be the Chancellor of the University and shall, by virtue of his office, be the head of the University;

(2)

In the absence of the Patron, the Chancellor shall, when present preside at the convocations of the University."

(2)

after sub-section (2) the following new sub-section shall be inserted:-

"(2A) The Chancellor shall, by virtue of his office, be the Chairman of the Senate and as such shall, when present, preside at the meetings thereof."

8.

Omission of section 11.

- Section 11 of the Acts shall be omitted.

9.

Amendment of section 12.

- For section 12 of the said Acts the following section shall be substituted:-

"12. Vice-Chancellor. - (i) The Vice-Chancellor shall be appointed by the Chancellor in the following manner:-

A Committee of three persons, two of whom shall be persons not connected with the University or any affiliated college, recognised school or approved institution, nominated by the Syndicate and one person nominated by the Chancellor, who shall also appointed one of the three as Chairman of the Committee, shall select not less than three persons and shall report its selection to the Syndicate. The Syndicate shall make its recommendations on the persons so selected to the Chancellor, who shall appoint one of such persons as Vice-Chancellor.

(ii)

The Vice-Chancellor shall be a whole-time officer of the University. He shall hold office for a term of three years, but may, subject to the provisions of sub-section (3) be re-appointed for a second term of three years in continuation of the first term.

(iii)

No person shall hold the office of the Vice-Chancellor for more than two terms.

(iv)

The condition of service of the Vice-Chancellor shall be laid down at the time of his first appointment and shall not be varied during his term of office. Where a temporary vacancy in the office of the Vice-Chancellor occur, by reason of leave, illness or otherwise, the Syndicate shall forthwith report the same to the Chancellor who shall make such arrangement for carrying on the office of the Vice-Chancellor as he may think fit."

10.

Amendment of section 13.

- In sub-section (1) of section 13 of the said Acts, the words "and the Pro-Chancellor" shall be deleted.

11.

Amendment of section 14.

- For section 14 of the said Acts, the following section shall be substituted:-

"14. Registrar. - (1) The Registrar shall be appointed by the Syndicate on the recommendation of a Selection Committee consisting of the following, namely:-

(i)

the Vice-Chancellor;

(ii)

the Chairman of the Public Service Commission for Rajasthan, or a member thereof nominated in this behalf by the Chairman, and

(iii)

an educationist to be nominated by the Chancellor for each appointment.

(2)

The employments and conditions of service of the Registrar shall be such as may be determined by the Syndicate."

12.

Amendment of section 16.

- In section 16 of the said Acts, the words "and the Pro-Chancellor" shall be deleted.

13.

Amendment of section 17.

- For section 17 of the said Acts, the following section shall be substituted:-

"17. Authorities of the University. - The following shall be the authorities of the University, namely:-

- (i)
the Senate,
 - (ii)
the Syndicate,
 - (iii)
the Academic Council,
 - (iv)
the Faculties,
 - (v)
the Board of Studies,
 - (vi)
the Board of High School Education,
 - (vii)
the Board of Inspection, and
 - (viii)
such other bodies of the University as may be declared by the statutes to be the authorities of the University."
- 14.

Amendment of section 18.

- For section 18 of the said Act, the following sections shall be substituted:-

"18. The Senate-Composition and term of office. - (1) The Senate shall consists of the following persons, namely-
Class I - Ex-officio Members

- (i)
the Chancellor,
- (ii)
the Vice-Chancellor,
- (iii)
the Registrar,
- (iv)
the Deans of Faculties,
- (v)
the Minister of Education in Rajasthan,
- (vi)
the Director of Education in Rajasthan,
- (vii)
the Director of Medical Service in Rajasthan,
- (viii)
the Director of Agriculture in Rajasthan
- (ix)
the Director of Industries in Rajasthan,
- (x)
the Chief Engineer (Buildings and Roads) in Rajasthan,
- (xi)
the Members of Syndicate,
- (xii)
the Heads of University Departments of the status of a Professor or a Reader,
- (xiii)
the Principals of post-graduate colleges,
- (xiv)
such other ex-officio members, not exceeding four as may be provided for in the statutes.

Class II - Life Members

- (xv)

Every person, who has made a donation to the University at any one time of an amount of, or of property valued at, one lakh of rupees or more, or a representative nominated in this behalf by such person during his life time provided that in the case of the donor being a corporate body the membership shall last for a period of 20 years from the date of acceptance by the University of such donation.

Class III - Other Members

(xvi)

Five persons elected by the Academic Council from among its members,

(xvii)

Five persons, not being teachers, elected by the registered graduates of the University from among themselves,

(xviii)

Five persons of whom at least two shall be principals of degree colleges, elected by the principals of colleges other than post graduate colleges, from among themselves,

(xix)

One Principal of a Medical College, nominated in rotation by the Vice-Chancellor,

(xx)

One Principal of an Engineering College, nominated in rotation by the Vice-Chancellor,

(xxi)

One Principal of a Teachers' Training College, nominated in rotation by the Vice-Chancellor,

(xxii)

One Principal of an Agricultural College, nominated in rotation by the Vice-Chancellor,

(xxiii)

Five persons elected by teachers of affiliated colleges and approved institutions, other than principals thereof, from among themselves,

(xxiv)

Four Head Masters of high schools nominated by the Education Department of the Government of whom at least one shall be head mistress of a girl's high school,

(xxv)

Persons who have rendered distinguished service to education, not exceeding five in number appointed by the Chancellor,

(xxvi)

Person is not exceeding five in number nominated by Government.

(2)

Members of the Senate other than ex-officio members and life members shall hold office for a period of 5 years."

15.

Amendment of section 19.

- In sub-section (2) of section 19 of the said Acts, for the word "forty" the word "twenty five" shall be substituted.

16.

Amendment of section 21.

- For section 21 of the said Acts, the following section shall be substituted:-

"21. The Syndicate-Composition and term of office. - (1) The Syndicate shall be the executive body of the University and shall consist of the following persons namely:-

(i)

the Vice-Chancellor;

(ii)

the Deans of the Faculties of Arts, Science and Commerce;

(iii)

two Deans of Faculties nominated by the Vice-Chancellor from the Deans of Faculties other than those of Arts, Science and Commerce;

(iv)

the Director of Education in Rajasthan;

(v)

three persons elected by the Principals of affiliated colleges, other than Intermediate colleges, from amongst themselves;

(vi)

three persons, not being teachers elected by the Senate from among its members; and

(vii)

two educationists nominated by the Chancellor.

(2)

The term of office of the elected and nominated members of the Syndicate Shall be three years."

17.

Amendment of section 22.

- For section 22 of the said Act, the following section shall be substituted:-

"22. Syndicate Functions. - Subject to such conditions as may be prescribed by or under the provisions of this Act, the Syndicate shall exercise the following powers and perform the following functions, namely,-

(a)

to make, amend and cancel ordinances;

(b)

to hold, control and administer property and funds of the University;

(c)

to accept, on behalf of the University, donations, bequests or transfers of movable or immovable property;

(d)

to administer any funds or resources placed at the disposal of the University for specific purposes;

(e)

to invest monies belonging to the University;

(f)

to enter into, vary, carry out, confirm and cancel contracts on behalf of the University;

(g)

subject to the provisions of this Act and the statutes, to appoint officers (other than the Chancellor, Vice-Chancellor, and Deans of Faculties), teachers, clerical staff and servants of the University, and to define their duties, emoluments and conditions of service and to provide for the filling up of temporary vacancies in their posts;

(h)

to determine the form, provide for the custody, and regulate the use of the Common Seal of the University;

(i)

subject to the statutes, to inspect and to affiliate, recognise or approve colleges, schools and hostels or institutions, and to withdraw affiliation, recognition or approval from them;

(j)

to arrange for the holding of examinations and publishing results thereof;

(k)

to maintain proper standards of teaching and examination in consultation with the Academic Council;

(l)

to recommend minimum scales of salaries of teachers in colleges and of those teaching the IX and X classes in high schools; and

(m)

to exercise all other powers of the University, not otherwise provided for by this Act or the statutes."

18.

Amendment of section 23.

- For section 23 of the said Acts, the following section shall be substituted:-

"23. Academic Council-Composition & term of office. - (1) The Academic Council shall be the academic body of the University and shall consist of the following persons, namely:-

(i)

the Vice-Chancellor,

(ii)

the Deans of Faculties,

(iii)

the Heads of University Departments of the status of a Professor or a Reader,

(iv)

the Conveners of the Boards of Studies, and

(v)

five persons, co-opted by the Academic Council who possess special attainments in particular studies and who are not teachers in the University or any affiliated college or recognised school or approved institution.

(2)

The term of office of the members of the Academic Council, other than ex-officio members, shall be three years."

19.

Insertion of new section, 23-A.

- After section 23 of the said Acts, the following new section shall be inserted:-

"23A. Academic Council-Functions. - (1) The Academic Council shall have control and general regulation of, and be responsible for the maintenance of the standards of teaching and examination within the University.

(2)

Without prejudice to the generality of the foregoing provision and subject to such conditions as may be prescribed by or under the provisions of this Act, the Academic Council shall exercise the following powers and perform the following functions, namely:-

(i)

subject to the approval of the Syndicate, to make, amend and cancel regulations laying down courses of study and curricula;

(ii)

to propose to the Syndicate ordinances concerning admission to the University or to its examinations, courses of study and curricula schemes of examination, and attendance; provided that proposals regarding courses of study and curricula and schemes of examination shall be made after considering the reports, when necessary, of the Faculty or Faculties concerned;

(iii)

to make proposals regarding the maintenance of standards of teaching and examination;

(iv)

to advise the Syndicate regarding the institution of University teaching posts in particular subjects;

(v)

after considering the recommendations of the Faculty concerned, to advise the Syndicate regarding the institution of Boards of Studies and their strength;

(vi)

to advise the Syndicate regarding University fees;

(vii)

to advise the Syndicate regarding equivalence of examinations and recognition of the examinations of other bodies;

(viii)

to advise the Syndicate regarding the University Library and the appointment of a University Library Committee;

(ix)

to advise the Syndicate regarding the conditions of award and tenure of University scholarships and other benefits;

(x)

to refer matters to Faculties and Boards of Studies;

(xi)

to promote research; and

(xii)

to advise the Syndicate regarding all other academic matters.

20.

Amendment of section 24.

- For section 24 of the said Acts, the following section shall be substituted:-

"24. Faculties-Number. - The University shall include the faculties of-

- (1)
Arts,
 - (2)
Science
 - (3)
Commerce,
 - (4)
Law,
 - (5)
Medicine and Pharmaceutics,
 - (6)
Engineering and Technology,
 - (7)
Oriental learning including Ayurved,
 - (8)
Education,
 - (9)
Agriculture and Forestry,
 - (10)
Women's Education,
 - (11)
Music and Fine Arts,
- and such other facilities as may be prescribed by the Statutes."

21.

Insertion of new sections 24A to 24N.

- After section 24 of the said Acts, the following new sections shall be inserted, namely:-

"24A. Faculties-Composition and term of office. - (1) The faculties of Arts, Science and Commerce shall consist of the following:-

- (i)
The Dean of the Faculty;
- (ii)
University Professors and Readers in the subjects assigned to the Faculty.
- (iii)
all heads of departments within the Faculty in the colleges affiliated upto the degree standard, provided they have at least 8 years' experience of teaching degree classes in a subject of the Faculty;
- (iv)
members co-opted by the Faculty concerned from among teachers in affiliated colleges within the Faculty, the number of such members not to exceed five in the case of the Faculty of Arts and not to exceed two in the case of each of the Faculties of Science and Commerce;
- (v)
members co-opted by the Faculty concerned from among persons who are not teachers in the University or in any of its affiliated colleges, the number of such members not to exceed five in the case of the Faculty of Arts and not to exceed three in the case of each of the Faculties of Science and Commerce, and
- (vi)
the Conveners of the Board of Studies in the Faculty, who are not otherwise included under the foregoing clauses.

(2)
The Faculties of Engineering and Technology, of Medicine and Pharmaceutics and Education shall consist of the following:-

- (i)
the Dean of the Faculty;

(ii)

University Professors and Readers in the subjects assigned to each Faculty;

(iii)

Heads of departments within each Faculty in degree colleges, and

(iv)

three persons not being teachers within the Faculty to be co-opted by the Faculty concerned.

(3)

The Faculty of Law shall consist of the following:-

(i)

the Dean of the Faculty,

(ii)

University Professors and Readers in the subjects assigned to the Faculty,

(iii)

Principals of separate colleges of Law,

(iv)

the Head of the Department of Law being a whole-time teacher of Law from each college which is not a separate Law College,

(v)

two teachers of Law in the University to be co-opted by the Faculty, and

(vi)

three persons not being teachers in the University or any of its affiliated colleges to be co-opted by the Faculty.

(4)

The composition of other Faculties shall be prescribed by the Statutes.

(5)

The members of a Faculty, other than ex-officio members, shall hold office for a period of 3 years.

24B.

Deans of Faculties. - (1) There shall be a Dean of each Faculty who shall be appointed by the Vice-Chancellor in the following order of preference, namely:-

(a)

For the Faculty of Arts, Science and Commerce:-

(i)

University Professors or Principals of post-graduate colleges and Principals of degree colleges who have held the office of the Principal of a post-graduate college for at least five years, to be appointed alternately so far as persons in the two categories are available;

(ii)

University Readers in subjects in which there are no University Professors;

(iii)

Principal of degree colleges; and

(iv)

Heads of Post-graduate departments.

Note. - The Principal or the teacher to be appointed as Dean must profess a subject included in the Faculty concerned.

(b)

For the Faculty of Law:-

(i)

University Professors of Law or Principals of Law Colleges to be appointed alternately so far as persons in the two categories are available;

(ii)

University Readers in Law in case there is no University Professors;

(iii)

Heads of the Department of law, being whole-time teachers of Laws, in affiliated colleges, which are not separate Law Colleges, not below the rank of Professors.

(c)
For the Faculties of Engineering and Technology Medicine and Pharmaceutics and Education:-

(i)
Principals of colleges in the Faculty concerned;

(ii)
Heads of departments of subjects in the Faculty concerned.

(d)
For other Faculties. - The qualifications and conditions of eligibility of the Deans of other Faculties shall be prescribed by the Statutes.

(2)
The Dean shall hold office for a term of three years and no person shall be eligible for re-appointment as Dean until a period of at least six years has elapsed after the expiry of his last term.

24C.
Functions of Deans of Faculties. - (1) The Dean of a Faculty shall be responsible for the due observance of the Statutes, Ordinances and Regulations relating to that Faculty.

(2)
The Dean shall preside at the meetings of the Faculty and shall record its proceedings.

(3)
The Dean shall have the right to be present and speak at the meetings of the Boards of Studies relating to his Faculty but not to vote thereat unless he is a member thereof.

24D.
Functions of the Faculties. - Each Faculty shall exercise the following functions, namely,-

(a)
to recommend to the Academic Council courses of study and curricula and schemes of examinations, after consulting the Boards of Studies;

(b)
to recommend to the Syndicate through the Academic Council what Board of Studies should be instituted and the strength of such Boards, and to constitute them as provided in section 24-E;

(c)
to recommend to the Academic Council conditions for the award of degrees and other academic distinctions;

(d)
to co-ordinate work in the subjects assigned to the Faculty;

(e)
to organise research, or to secure co-condition therein when desirable;

(f)
to deal with any matter referred to it by the Academic Council or the Syndicate;

(g)
to remit matters to Boards of Studies;

(h)
to consider any matter within its purview referred to it by a Board of Studies;

(i)
to hold meetings with the sanction of the Vice-Chancellor jointly with any other Faculty or Faculties, such joint meetings to be convened by the Vice-Chancellor and to be presided over by him or by a Dean nominated by him; and

(j)
to discharge such other functions as may be prescribed by the Statutes.

24E.
Board of Studies-Number, composition and term of office. - (1) There shall be a Board of Studies for each subject or group of subjects. The number of the Boards of Studies in each Faculty as also the number of members of each Board shall be determined by the Syndicate of the recommendation of the Academic Council and the Faculty concerned.

(2)
The Boards of Studies shall be constituted by the Faculty concerned for a period of three years.

(3)
In the Faculties of Arts, Science, Commerce and Law the members of a Board shall not exceed-

(a)
seven in the case of a Board dealing upto post-graduate studies; and

(b)
five in other cases.

(4)
The Faculties of Engineering and Technology and of Medicines and Pharmaceutics and Education shall have one Board each. The numbers of members in the Board of Studies relating to the Faculty of Education shall not exceed five and in each of the other two Boards, eleven.

(5)
A Board when dealing with a subject or subjects for High School education shall co-opt a member, who shall be Head Master of a High School of not less than ten years' teaching experience in the subject:

Provided that in calculating the maximum number of members prescribed for a Board by sub-section (3), the number co-opted under this sub-section shall not be counted.

(6)
There shall be at least one and not more than two external members of each Board consisting of five or less than five members and at least two and not more than three external members on each Board consisting of more than five members.

(7)
In the case of a Board dealing upto post-graduate studies, there shall be at least three internal members who shall be heads of postgraduate department, or postgraduate teachers to the extent the number of such heads is less than three in the University or in affiliated Colleges or approved institutions.

(8)
Each Board shall have a convener appointed by itself in the following order of preference from among its internal members, namely:-

(i)
University Professors;

(ii)
Principals of post-graduate colleges, being heads of departments or Principals of degree colleges who have held the office of the Principal of a postgraduate college and head of a department for at least five years;

(iii)
University Readers in subject in which there is no University Professors;

(iv)
Principals of degree colleges being heads of departments;

(v)
Heads of post-graduate departments in colleges;

(vi)
Heads of degree departments in colleges;

(vii)
Other heads of departments for subjects taught only upto Intermediate standard.

Explanation. - "Internal member" means a member who is a teacher in the University, in an affiliated college, a recognised high school or an approved institution; and "external member" means one who is not an internal member.

24F.

Boards of Studies-Functions. - (1) The Boards of Studies shall recommend courses of study & curricula in their respective subjects and shall advise on all matters relating there to referred to them by the Syndicate or the Academic Council or the Faculty concerned.

(2)
A Board of Studies may bring to the notice of the Academic Council or the Syndicate matters connected with examinations in its subject or subjects and may also address the Faculty concerned on any matters connected with the improvement of the courses therein.

(3)

Any two Boards of Studies may, with the consent of the Vice-Chancellor, and shall at the request of the Academic Council or the Syndicate, jointly meet and act in concurrence and render a joint report upon any matter which lies within the province of both. In such cases the joint meeting shall elect its own chairman from among the two Conveners. The quorum of a joint meeting of the Board must include a full quorum of each Board represented, no member present being counted on more than one separate quorum.

(4)

The Boards of Studies shall prepare panels of examiners in their respective subjects in accordance with the Statutes.

24G.

Board of High School Education-Composition and term of office. - (1) The Board of High School Education shall consist of the following namely:-

(i)

the Vice-Chancellor;

(ii)

the Director of Education of Rajasthan;

(iii)

three members of the Senate elected by the Senate;

(iv)

two members of the Syndicate elected by the Syndicate;

(v)

the Deans of the Faculties of Arts, Science and Commerce;

(vi)

seven heads of institutions having High School classes to be nominated by the Vice-Chancellor, of whom five-three from Government institutions and two from private institutions, shall be Head Master of High Schools and two-one each from Government and Private institutions-shall be Principals of Intermediate College;

(vii)

one member from among the Principals of Training Colleges, affiliated to the University to be nominated in rotation by the Vice-Chancellor, one each from Government and private institutions;

(viii)

two women members-one each from Government and private institutions-to be nominated by the Vice-Chancellor in rotation from amongst the Heads of Women's Colleges which include High School education of Heads of Girl's High Schools; and

(ix)

three persons associated with any educational work or institution in Rajasthan to be nominated by the Government;

(x)

Members of the Board of High School Education, other than ex-officio members, shall hold office for a period of three years.

24H.

Board of High School Education-Functions. - (1) The Board of High School Education shall advise the Syndicate in matters relating to high school education. The recommendations of the Board shall first be considered by the Syndicate and such of them as the Syndicate might think proper shall then be referred to the proper officer or authority of the University.

(2)

Subject to approval by the Syndicate, the Board shall make rules relating to-

(i)

recognition of high schools;

(ii)

residence of students of high schools;

(iii)

admission of internal and external students of the High School Examinations;

(iv)

qualifications of teachers of High school (IX and X forms) clauses; and

(v)

other allied matters.

24I.

The Board of Inspection-Composition. - The Board of Inspection shall consist of the following, namely:-

(i)

the Vice-Chancellor;

(ii)

the Director of Education in Rajasthan; and

(iii)

the Deans of Faculties.

24J.

The Board of Inspection-Functions. - (1) The Board shall deal with applications for affiliation, recognition or approval of colleges, schools and institutions within the territorial jurisdiction of the University, arrange for their inspection in the manner prescribed by the statutes, and make recommendations to the Syndicate in regard to their affiliation; recognition or approval, as the case may be.

(2)

The Board shall appoint three committees consisting of five members each, one to deal with applications for affiliation of colleges, another to deal with applications for recognition of schools and the third to deal with applications for approval of institutions. The committees shall be appointed for a period of three years.

(3)

Subject to approval by the Syndicate, the Board may make rules for the approval, recognition and affiliation of institutions school and colleges, provided that such rules relating to high schools shall not be made until the Board of High School Education has first been consulted.

24K.

Other Boards. - (1) The University shall establish a Research Board, a Publication Board, a Board of Sports, a Health and Residence Board and such other Boards as may be prescribed by the Statutes.

(2)

The powers and functions of the Boards established under subsection (1) shall be as prescribed by the Ordinances.

24L.

Autonomy of Approved Institutions. - Subject to the general powers of inspection supervision and calling or periodical returns, to be exercised by the University in accordance with the Statutes, approved institutions shall enjoy full autonomy in the matter of prescribing their courses of study and curricula, organisation of their work and in all other academic and administrative matter.

24M.

Privileges of Approved Institutions. - While granting recognition, the Syndicate shall specify the status of an approved institution as a post-graduate, degree or intermediate college or a high school, as the case may be, and members of the staff of such institution shall then enjoy the same rights and privileges as are allowed under this Act and the Statutes, ordinances, regulations and rules made thereunder, to members of the staff of a college or school of equal status in the University in respect of membership of an authority or body of the University or for appointment as an officer of or an examiner in the University.

24N.

Recognition of examinations conducted by approved Institutions. - The Syndicate shall have power to recognise any degree, diploma or certificate granted by an approved institution as equivalent to a corresponding degree, diploma or certificate of the University. The University shall for this purpose; prescribe by statutes the conditions and the manner according to which an approved institution shall hold its examinations".

22.

Omission of sections 25 and 26.

- Sections 25 and 26 of the said Acts shall be omitted.

23.

Amendment of section 27.

- For section 27 of the said Acts the following section shall be substituted:-

"27. Statutes Scope. - Subject to such conditions as may, be prescribed by or under the provisions of this Act, the Statutes may, consistently with this Act, provide for all or any of the following matters; namely:-

- (1)
conferment of honorary degrees;
- (2)
holding of convocations to confer degrees;
- (3)
powers and functions of the officers of the University and their mode of appointment, save as provided in this Act;
- (4)
constitution, powers and functions of the authorities, Boards and Committees of the University, save as provided in this Act;
- (5)
institution and maintenance by the University of departments, colleges, institutes of research or specialised studies and hostels;
- (6)
fees to be charged for courses of study and curricula prescribed by the University and for admission to its examinations, degrees and diplomas;
- (7)
inspection and recognition affiliation or approval of High Schools, Colleges, and Institutions;
- (8)
conditions governing the appointment, duties and remuneration of examiners;
- (9)
acceptance and management of bequests, donations and endowments;
- (10)
registration of graduates and maintenance of the register of registered graduates;
- (11)
procedure at meetings of the Senate and transaction of its business;
- (12)
constitution of pension, insurance, gratuity and provident fund for the benefit of officers, teachers, clerical and inferior staff of the University;
- (13)
terms and vacation of the University;
- (14)
degrees, diplomas and other academic distinctions to be awarded by the University; and
- (15)
all matters which by this Act are to be or may be prescribed by Statutes, or which are dealt with in the Statutes set out in the Schedule to this Act."

24.

Amendment of section 29.

- For section 29 of the said Acts, the following section shall be substituted;

"29. Ordinances-Scope. - Subject to such conditions as may be prescribed by or under the provisions of this Act, the Syndicate may make Ordinances, consistent with this Act and the Statutes, to provide for all or any of the following matters, namely:-

- (1)
courses of study and curricula to be laid down for all degrees and diplomas of the University;
- (2)
conditions under which students shall be admitted to courses of study and curricula and examinations for degrees, diplomas and other academic distinctions;
- (3)
conditions of residence, conduct and discipline of students of the University;

- (4)
conduct of examinations;
- (5)
recognition of supervisors for guiding research;
- (6)
emoluments and conditions of service of University teachers;
- (7)
mode of execution of contracts for, or on behalf of, the University;
- (8)
rules to be observed and enforced by affiliated colleges and recognised High Schools in respect of transfer of students;
- (9)
all matters which by this Act or the Statutes are to be or may be provided for by Ordinances; and
- (10)
generally all matters for which provision is, in the opinion of the Syndicate, necessary for the exercise of the powers conferred or the performance of the duties imposed upon the Syndicate by this Act or the Statutes."

25.

Amendment of section 31.

- For section 31 of the said Acts, the following section shall be substituted:-

"31. Regulations. - The Academic Council may, subject to the approval of the Syndicate, make regulations consistent with this Act, the Statutes and the Ordinances, providing for all matters which by this Act, the Statutes or the ordinances are to be provided for by regulations and for all other matters solely lying within its purview.

26.

Insertion of new section 31-A.

- After section 31 as so substituted, the following new section shall be inserted:-

"31-A. Rules. - Any authority of the University specified in clauses (iv), (v), (vi), (vii) and (viii) of section 17, and any other board of the University may, subject to the approval of the Syndicate, make rules, consistent with this Act and the statutes, ordinances and regulations, providing for all matters solely concerning the conduct of its own business."

27.

Amendment of section 34.

- For section of the said Acts, the following section shall be substituted:-

"34. Committee for the selection of examiners. - (1) Examiners shall be appointed by the Syndicate on the recommendation of the Committee for the selection of Examiners.

(2)

If any examiner is unable to act for any cause and a fresh appointment cannot be made in the time in the manner prescribed by sub-section (1), the Vice-Chancellor shall have power to appoint another examiner to fill the vacancy and shall communicate such appointment to the Syndicate.

(3)

The Syndicate shall not make any change in the recommendations made by the Committee with regard to the appointment of examiners except after recording specific reasons for any such change.

(4)

The Committee for the selection of examiners in each subject or a group of allied subjects shall consist of-

(i)

the Vice-Chancellor;

(ii)

the Dean of the Faculty concerned;

(iii)

the Convener of the Board of Studies concerned; and

(iv)

one member other than a convener of the Board of Studies concerned to be elected by the Board every year."

28.

Insertion of new sections 34-A and 34-B.

- After section 34 as so substituted, the following new sections shall be inserted.-

"34A. Committee for the conferment of honorary degrees. - (1) There shall be a Standing Committee for the conferment of Honorary Degrees consisting of the following, namely:-

- (i)
the Vice-Chancellor;
- (ii)
the Chief Justice of the High Court of Rajasthan; and
- (iii)
the Dean of the Faculty concerned.

(2)
No honorary degree, diploma or other academic distinction shall be conferred on any person unless the proposal for the conferment thereof has been-

- (a)
originally made by the said Committee;
- (b)
approved of by the Syndicate;
- (c)
passed by the Senate; and
- (d)
confirmed by the Chancellor:

Provided that, in cases of emergency, such proposal may be confirmed by the Chancellor on the recommendation of the said Committee, if the recommendation has been approved by the Syndicate.

34B.

Results Committee. - There shall be a Results Committee for declaration and publication of the results of University examinations. The Committee shall consists of the following, namely:

- (i)
the Vice-Chancellor;
- (ii)
the Direction of Education in Rajasthan;
- (iii)
the Registrar;
- (iv)
the Dean of the Faculty concerned; and
- (v)
one member nominated by the Vice-Chancellor every year."

29.

Amendment of section 39.

- In section 39 of the said Acts, sub-sections (1) and (2) shall be omitted.

30.

Insertion of new sections 40 to 46.

- After section 39 of the said Acts, the following new sections shall be inserted, namely:-

"40. Registrar not to accept any remunerative work. - The Registrar shall not be offered not shall be accept any remuneration for any work in the University:

Provided that noting in this section shall in any way affect his emoluments and conditions of service determined under sub-section (2) of section 14.

41.

Members of the Syndicate not to get remuneration. - No member of the Syndicate shall get any remuneration for any work done by him for the University, whether as an examiner or otherwise. If, however, a member of the Syndicate is specially invited to become an examiner, the maximum amount of remuneration payable to him shall not exceed one hundred rupees.

42.

Books written by a member of the Board of Studies not to be prescribed. - No book written or published by any person who is the member of a Board of Studies of the University shall be prescribed or recommended for study for any examination of the University so long as such person remains a member of the Board.

43.

Books prescribed or recommended not to be changed. - No book prescribed or recommended for any examination of the University shall ordinarily be changed before a period of five years.

44.

Reference to Government Officers to be construed in case of change of designation, as reference to corresponding officers. - Where any provision of this Act or of the Statutes, Ordinances, regulations or rules refers to any officer of the Government by designation, then, if that designation is altered or that office ceases to exist the reference shall be construed as a reference to the altered designation or, as the case may be, to such corresponding officer as the Government may direct.

45.

Removal of difficulties at the commencement of the Act. - If any difficulty arises to the first constitution or re-constitution of any Authority of the University after coming into force of this Act or otherwise in first giving effect to the provisions thereof, the Government as occasion may require, may in consultation with the Vice-Chancellor, by order, do anything which appears to it necessary for the purpose of removing the difficulty.

46.

Interpretation. - The provisions of the General Clauses Act, 1897, of the Central Legislature, shall mutatis mutandis apply, so far as may be, to this Act, and to the Statutes, Ordinances, Regulations and Rules thereunder in the same manner as they apply to a Central Act."

31.

Amendment of the Statutes.

(1)

Notwithstanding anything contained in section 28 of the said Acts, the Statutes 2, 3, 4, 5, 6, 8, 9, 11, 12, 14, 16(1), 25 and 42 set out in the Schedule to the said Acts, shall be omitted.

(2)

In Statute 10 for the word "forty", the word "fifteen" shall be inserted.

(3)

For Statute 25, the following Statute shall be substituted, namely:-

"25. Selection of Examiners. - (1) No person shall be qualified for appointment as an examiner in a subject for any examination unless he-

(a)

has taught the subject for at least three years upto the standard of the examination and possesses five year's teaching experience in that subject; or

(b)

has had five year's experience, as an examiner in the subject, of the standard of the examination concerned.

Examination. - Teaching or examining experience in any Indian University established by law shall be counted for the purpose of this sub-statute.

(2)

(a)

Each Board of Studies shall prepare a panel consisting of-

(i)

all qualified internal examiners, and

(ii)

as many external examiners as may be needed for conducting examinations of the University for a period of five years, in each subject for each examination upto and inclusive of the examination for the Master's degree. The Committee for the selection of Examiners shall select examiners in rotation from out of the panel and no examiner outside the panel shall be appointed unless and until a person within the panel is not available or cannot be appointed in accordance with the provisions hereinafter contained.

(b)

The panels shall ordinarily be revised once in five years and such of the persons in the previous panels as have not got a chance of acting as examiners during the last quinquennium shall be given preference over others in the revised panels.

(c)

This sub-statute shall not apply to examiners for a Doctor's degree.

(3)

Excepting for examinations in the Faculty of Medicine Pharmaceutics and of Engineering and Technology-

(a)

no person shall be appointed examiner for any examination upto and inclusive of the Intermediate examination for more than two years consecutively; and for the degree and postgraduate examinations for more than three years consecutively; and

(b)

before a person, who has been appointed as an examiner for one year or if continued under clause (a) for two or three years consecutively is again appointed as an examiner, there shall be a gap of at least four years in the case of examinations upto and inclusive of an examination for the Bachelor's degree, and of at least two years in the case of an examination for the Master degree:

Provided that of the persons who have acted in any one year as co-examiners only one-half shall be replaced for the next year.

(4)

Excepting as aforesaid no person shall be examiner in more than one paper in any one year in the University.

Explanation. - 'Paper' includes a "Practical".

Exception. - An examiner in an examination for the M. Sc. Degree may be appointed for one paper and one practical alongside.

(5)

Not more than one person from the same college, school or Institution shall be appointed as an examiner in a particular subject for a particular examination:

Provided that this condition may be relaxed, where necessary in the case of post-graduate examinations.

(6)

No person who is himself appearing in any written examination of the University shall be appointed as an examiner for any examination of the University in the year in which he is so appearing. When any person is appointed as an examiner in any year, he shall forthwith inform the Registrar whether he intends so to appear.

(7)

No person shall be appointed as a paper setter in any subject for an examination at which any of his near relations intends to appear in that year. Every paper setter shall, as soon as may be, after his appointment has been made; communicate to the Registrar, if any such relation intends so to appear.

(8)

The maximum number of answer-books allotted to any examiner in the University in any one year shall not exceed three hundred.

(9)

Except in the case of the High School and Intermediate Examinations-

(a)

there shall be at least one external examiner in an examination for a subject having more than one paper;

(b)

in the case of Law examinations there shall be external examiners in the proportion of about one third of the total number of examiners; and

(c)

in the case of examinations for the Doctor's degree, there shall be external examiners in the proportion of about two-thirds of the total numbers of examiners.

(10)

For the M.Sc. Examination, in subjects other than Mathematics, the head of a post-graduate department in an affiliated college shall be one of the examiners for the students of that college appearing at the examination. The provisions of

this sub-statute shall be given effect to notwithstanding anything herein contained.

(11)

The Syndicate may, on the recommendation of the Committee for the selection of examiners, after recording its reasons in writing, waive the provisions of sub-statutes (3) to (10) in exceptional cases.

Explanation. - In these statutes, "examiner" includes "Co-examiner" except in so far as there is anything repugnant in the subject or context."

(4)

After Statutes 37, the following Statutes shall be inserted, namely:-

37A.

Inspectors. - (1) For the inspection of High Schools, Colleges and Institutions the Board of Inspection shall appoint Inspectors from a panel which shall be constituted by the Board and ordinarily revised once in five years. The panel shall consist of the following, namely,-

(a)

For High Schools,

(i)

Principals of degree colleges including post-graduate colleges;

(ii)

Principals Intermediate Colleges of not less than 5 year's standing;

(iii)

Inspecting officers of the Education Department of the Government not below the rank of Divisional Inspector.

(b)

For Intermediate and Degree Colleges, other than postgraduate colleges,-

(i)

University Professors and Readers;

(ii)

Principals of Degree and post-graduate colleges;

(c)

For post-graduate colleges,-

(i)

Professors of the University or of any recognised Indian University;

(ii)

Principals of post-graduate colleges affiliated to the University or to any recognised Indian University.

(d)

For Institutions. - The panels for High Schools and Colleges shall also apply to institutions of equal status.

(2)

The number of Inspectors to be sent out by the Board Inspection shall be limited as follows:-

(a)

High Schools.-

(i)

For new recognition.-Two persons, one of whom shall be the Inspector of the Division concerned; provided that, for Government schools another persons shall be appointed in place of the Inspector;

(ii)

For recognition in additional subject,-One person only.

(b)

Intermediate and degree colleges.-

(i)

For new affiliation.-One person for each Faculty but not less than two in any case;

(ii)

For affiliation in additional subjects.-One person for each Faculty.

(c)

For affiliation in post graduate subjects.-One for each subject.

(d)

For approval Institutions.-Two persons or in case of Research institutions two persons for each subject.

(e)

For periodical Inspection.-One persons for High Schools, two persons for Intermediate and degree colleges, and colleges doing postgraduate work in one Faculty only, three persons for colleges doing post-graduate work in more than one Faculty and two persons for approved Institutions.

37B.

Research and other institution. - (1) The Syndicate shall have power to declare an institution (other than a college or school), engaged either in research or in other educational and teaching work as an approved institution by the University.

(2)

An institution applying for approval under this Statute shall send a letter of application to the Registrar and shall give full information therein respect of the following matters, namely:-

(a)

status for which it wants to apply;

(b)

constitution and personnel of the managing body;

(c)

subjects and course, in case such courses are different from those prescribed by the University, in regard to which approval is sought;

(d)

accommodation, equipment and the number of students for whom provision has been or is proposed to be made;

(e)

strength of the staff, their qualifications and salaries and the research or other educational work done by them; and

(f)

fees levied or proposed to be levied and the financial provision made for capital expenditure on buildings and equipment and for the continued maintenance and efficient working of the institution.

(3)

Before taking the application into consideration the Syndicate may call for any further information which it may deem necessary.

(4)

If the Syndicate decides to take the application into consideration, it may direct a local inquiry to be made by competent persons authorised by it in this behalf. After considering the report made as a result of such local inquiry and making such further inquiry as may appear to it to be necessary, the Syndicate shall grant or refuse the application or any part thereof.

(5)

When the application or any part thereof is granted, the Syndicate shall define the status of the institution, specify in case of research institutions, the subject or subjects and in case of others, the courses of teaching in respect of which the institution is approved, communicate the fact to the Academic Council and make a report thereof to the Senate at its next succeeding meeting.

(6)

(a)

The rights conferred on an institution by approval may be withdrawn or suspended for any period if it has failed to observe any of the conditions of approval or is conducted in a manner which is prejudicial to the interests of Education or is in contravention of such provisions of this Act, the Statutes, Ordinances or Regulations as are applicable to it as an approved institution.

(b)

A motion for such withdrawal or suspension shall be initiated only in the Syndicate. The member of the Syndicate who intends to move such motion shall give notice of it and shall state in writing the grounds on which it is made.

(c)

Before taking the said motion into consideration, the Syndicate shall send a copy of the notice and written statement

mentioned in clause (b) to the head of the institution concerned together with an intimation that any representation in writing submitted within a period specified in the intimation on behalf of the institution will be considered by the Syndicate:

Provided that the period so specified may, if necessary, be extended by the Syndicate.

(d)

On receipt of the representation or on the expiry of the period referred to in clause (c), the Syndicate, after considering the notice of motion, statement and representation, and after such inspection, if any, by any competent person or persons authorised by the Syndicate in this behalf, and such further inquiry, if any, as may appear to it to be necessary, shall decide whether the approval should be withdrawn or suspended, as the case may be:

Provided that the approval shall not be withdrawn or suspended unless a resolution of the Syndicate to that effect is supported by a majority of at-least two-thirds of the members present at the meeting, such majority comprising not less than one-half of the members of the Syndicate.

37C.

Minimum number of working days. - The Total number of working days in an academic year, exclusive of examination days, shall not be less than-

(a)

180, in the case of degree colleges or post-graduate colleges; and

(b)

210, in the case of Intermediate Colleges and High Schools:

(5)

In Statute 3, the words "High school" shall be added after the word "Intermediate".

32.

General amendment in respect of certain words.

- In the said Acts and the Statutes of the University as contained in the Schedule thereto and all other Regulations, Rules and Orders,-

(i)

for the words "Recognised College" or "Recognised Colleges" wherever they occur, the words "affiliated College" or "affiliated Colleges" as the case may be shall be substituted; and

(ii)

the word "Pro-Chancellor" wherever it occurs, shall be omitted.

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